26STCV02165 26STCV02165

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV02165 Hearing Date: July 15, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCP02165

J.G.

WENTWORTH ORIGINATIONS, LLC vs W. B.

July

15, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER J. G. WENTWORTH ORIGINATIONS, LLC’S AMENDED VERIFIED PETITION FOR

APPROVAL FOR TRANSFER OF PAYMENT RIGHTS.

RULING:

The Amended Petition is granted.

The Court will sign and file a lodged order from Petitioner that is in statutory compliance.

Petitioner to give notice.

ANALYSIS:

“The California Legislature has adopted the Structured Settlement Protection Act (SSPA) (§ 10134 et seq.) to protect structured settlement payees from exploitation by factoring companies.” (RSL Funding, LLC v. Alford (2015) 239 Cal.App.4th 741, 745.)

“The court-approval process requires the factoring company to file a petition in the county in which the transferor resides for approval of the transfer, attaching copies of the petition, the transfer agreement, the disclosure form, the annuity contract, any qualified assignment agreement and the structured settlement agreement, a list of the names and ages of the transferor's dependents, notice of the court hearing date, and notice of a right to respond.” (321 Henderson Receivables Origination LLC v. Sioteco (2009) 173 Cal.App.4th 1059, 1066 [citing Ins. Code §10139.5(c)].)

“The California act…governing transfers of structured settlement payment rights defines a ‘“[s]tructured settlement agreement” [as] an arrangement for periodic payment of damages established by settlement or judgment in resolution of a tort claim in which the payment of the judgment or award is paid in whole, or in part, in periodic tax-free payments rather than a lump-sum payment.’” (Matthews v. Liberty Assignment Corp. (2016) 247 Cal.App.4th 71, 78.)

“Annuity issuers and structured settlement obligors are defined as ‘interested parties’ under the SSPA (§ 10134, subd. (g)), and as such, are entitled to notice of petitions to authorize transfer of payments under a structured settlement agreement.” (RSL Funding, LLC v. Alford (2015) 239 Cal.App.4th 741, 745.)

Procedurally, the following elements are required to be served and filed not less than 20 days prior to the scheduled hearing on any application for approval of a transfer of structured settlement payment rights:

(A) A copy of the transferee's application.

(B) A copy of the transfer agreement.

(C) A listing of each of the payee's dependents, together with each dependent's age.

(D) A copy of the disclosure required in subdivision (b) of Section 10136.

(E) A copy of the annuity contract.

(F) A copy of any qualified assignment agreement.

(G) A copy of the underlying structured settlement agreement.

(H) Notification that any interested party is entitled to support, oppose, or otherwise respond to the transferee's application, either in person or by counsel, by submitting written comments to the court or by participating in the hearing.

(I) Notification of the time and place of the hearing and notification of the manner in which and the time by which written responses to the application must be filed, which may not be less than 15 days after service of the transferee's notice, in order to be considered by the court.

(Ins. Code
§10139.5(c)(2). See also 321 Henderson Receivables Origination LLC v. Red Tomahawk (2009) 172 Cal.App.4th 290, 294 [summarizing the statutory requirements].)

Additionally, pursuant to
Insurance Code Section 10139.5(a), the Court must make the following express findings as to a transfer of structured settlement payment rights:

(1) The transfer is in the best
interest of the payee, taking into account the welfare and support of the payee's dependents.

(2) The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived that advice in writing.

(3) The transferee has provided the payee with a disclosure form that complies with Section 10136 and the transfer agreement complies with Sections 10136 and 10138.

(4) The transfer does not contravene any applicable statute or the order of any court or other government authority.

(5) The payee reasonably understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

(6) The payee reasonably understands and does not wish to exercise the payee's right to cancel the transfer agreement.

(Ins. Code § 10139.5(a). See
also 321 Henderson Receivables Origination LLC v. Sioteco (2009) 173 Cal.App.4th 1059, 1066 [citing Ins. Code §10139.5(a)].)

Also, judges shall retain
continuing jurisdiction to interpret and monitor the implementation of the transfer agreement as justice requires. (Ins. Code §10139.5(f).)

Further, at the time of filing such a petition, the transferee shall file a copy of the petition with the California Attorney General. Ins. Code section 10139.

In addition, all court costs and filing fees shall be paid by the transferee. (Ins. Code §10139.5(d).)

Here, the Court finds that the proposed transfer is in the best interest of the Payee, taking into account the welfare and support of a dependent of the Payee.

The structured settlement entered into for Payee, about 1993, was compensation for a wrongful death claim. Payee is 39 years old, single with 1 minor child. Payee is currently unemployed. Payee would receive $4,000.00 from this transaction. Payee feels it is in their best interest to sell a portion of their underlying annuity payments so that they can have the financial means to pay bills and rent.

The settlement provides for periodic structured payments including: A) 1 Life Contingent payment of $1,507.51 on February 27, 2050; and B) 178 monthly Life Contingent payments of $1,552.73 each, increasing at 3% annually, beginning on March 27, 2050 and ending on December 27, 2064.

The Payee agreed to sell to the transferee future payments totaling $343,359.19 in exchange for a

purchase price of Four Thousand Dollars and 00/100 Cents dollars ($4,000.00). The future payments have a discounted present value equal to $74,767.84. Hypothetically, if Payee did not sell the right to receive structured settlement payments, but instead borrowed the net amount of $4,000.00 and paid that loan back in installments with each of the payments now

selling, the equivalent interest rate paid would be 15.80% per year.

The Court further finds that the originally filed, and amended, documents comply with the procedural requirements and makes the other statutorily required findings.

Therefore, the Court grants
the Petition.